Our ref: REIS6722
Your ref:

07 December 2022

By Email Only: wacompliance@ndiscommission.gov.au

ATTENTION: Mr Philip Halton
Compliance Western Australia
NDIS Quality and Safeguards Commission
Level 1, 200 St Georges Terrace
PERTH WA 6000

Dear Mr Halton

Simon Reid – Proposed Banning Order

We refer to the matter above and your letter dated 2 December 2022 in relation to seeking an extension of time.

We did not receive a response from the Commission as requested in our letter dated 22 November 2022 and subsequently lodged our Client's submission on 30 November 2022.

We confirm that the abovementioned letter of 2 December 2022 was sent two days after the Commission's set due date granting our Client an extension of time to lodge his submission.

It is our view that the Commission's conduct in the delayed response and the granting of the extension of time after we have lodged the submission are improper and in conflict with procedural fairness.

Given that we have provided our submission by the prescribed date, our Client has instructed that they will not be providing any further information.

Kind regards

Tom & Co Legal
Tom & Co Legal